



Leasehold Reform Act 1979

1979 CHAPTER 44

An Act to provide further protection, for a tenant in possession claiming to acquire the freehold under the Leasehold Reform Act 1967, against artificial inflation of the price he has to pay. [4th April 1979]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) As against a tenant in possession claiming under section 8 of the Leasehold Reform Act 1967, the price payable on a conveyance for giving effect to that section cannot be made less favourable by reference to a transaction since 15th February 1979 involving the creation or transfer of an interest superior to (whether or not preceding) his own, or an alteration since that date of the terms on which such an interest is held.

Price to tenant on enfranchisement.
1967 c. 88.

(2) References in this section to a tenant claiming are to his giving notice under section 8 of his desire to have the freehold.

(3) Subsection (1) applies to any claim made on or after the commencement date (which means the date of the passing of this Act), and also to a claim made before that date unless by then the price has been determined by agreement or otherwise.

Citation
and extent.

2.—(1) This Act may be cited as the Leasehold Reform Act 1979; and the 1967 Act and this Act may be cited together as the Leasehold Reform Acts 1967 and 1979.

(2) This Act extends to England and Wales only.